

**TENTATIVE RULING FOR CIVSB2608626**  
**Department S24 - Judge Carlos M. Cabrera**

This courtroom follows California Rules of Court, rule 3.1308(a)(2) for tentative rulings. See also San Bernardino Superior Court Local 561. **If both sides do not appear, the tentative will simply become the ruling.**

Gonzalez v. Vista Metals LLC, et al  
Motion: Compel Arbitration  
Movant: Vista Metals LLC (Vista/Defendant)  
Respondent: Jesus Gonzalez (Gonzalez/Plaintiff)

**RELEVANT FACTUAL AND PROCEDURAL BACKGROUND**

On March 18, 2026, Plaintiff, on behalf of himself and others similarly situated, filed his Class Action Complaint alleging the following seven causes of action against Vista Metals, alleging seven causes of action: Failure to Pay Minimum Wages; Failure to Provide Meal Break; Failure to Permit Rest Break; Failure to Indemnify Employees for Employment-Related Losses/Expenditures; Failure to Provide Accurate Itemized Wage Statements; Failure to Pay All Wages Due Upon Separation of Employment; and Unfair Business Practices. Defendant is now moving to compel Plaintiff to arbitrate his individual claims, dismiss class claims, and stay these proceedings. Plaintiff opposes.

**ANALYSIS**

Under both the Federal Arbitration Act (FAA) and California Arbitration Act (CAA), the court is presumed the decider of disputes on arbitrability. (*BG Group plc v. Republic of Arg.* (2014) 572 U.S. 25, 34; *Sandquist v. Lebo Automotive, Inc.* (2016) 1 Cal.5th 233, 251-252 (*Sandquist*), overruled on other grounds per *Lamps Plus, Inc. v. Valera* (2019) 139 S.Ct. 1407, 1413, 1418-1419; *Dream Theater, Inc. v. Dream Theater* (2004) 124 Cal.App.4th 547, 553 (*Dream Theater*).) However, the agreement may provide otherwise through a delegation clause. (*First Options of Chicago, Inc. v. Kaplan* (1995) 514 U.S. 938, 943 (*First Options*); *Sandquist, supra*, 1 Cal.5th at p. 243.) Nonetheless, the Court must first determine the gateway issue of whether a contract was formed. (*Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 758, 776; *Ahlstrom v. DHI Mortg. Co., L.P.* (9th Cir. 2021) 21 F.4th 631, 635.) If a contract exists, the court must then determine if the delegation clause is valid and enforceable.

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## **The CBA and the Arbitration Agreement**

The United States Supreme Court held unequivocally that provisions of a CBA that clearly and unmistakably require union members to submit statutory claims to arbitration are enforceable. (*14 Penn Plaza LLC v. Pyett Penn Plaza* (2009) 556 U.S. 247, 274 (*Penn Plaza*). In so holding, the Supreme Court rejected the proposition that a union cannot waive an employee's right to a judicial forum, noting that skepticism of the use of arbitration for the vindication of statutory rights in the *Alexander v. Gardner-Denver Co.* (1974) 415 U.S. 36 line of cases rested on a misconceived view of arbitration that the Court has since abandoned. (*Penn Plaza, supra*, 556 U.S. at pp. 260–264.) Since *Penn Plaza*, California Courts of Appeal have analyzed the enforceability of an arbitration agreement in a collective bargaining agreement under this same clear and unmistakable standard. (*Mendez v. Mid-Wilshire Health Care Ctr.* (2013) 220 Cal.App.4th 534, 544-545; *Vasserman v. Henry Mayo Newhall Mem'l Hosp.* (2017) 8 Cal.App.5th 236, 245; *Rymel v. Save Mart Supermarkets, Inc.* (2018) 30 Cal.App.5th 853, 859 (2018); *Cortez v. Doty Bros. Equip. Co.* (2017) 15 Cal.App.5th 1, 12; *Wilson-Davis v. SSP Am., Inc.* (2021) 62 Cal.App.5th 1080, 1093.)

In the case at hand, Defendant presents the operative CBA in effect during Plaintiff's employment with Vista. (Dunn Decl. at ¶ 3 Exh. A.) On August 26, 2021, Plaintiff executed an acknowledgement that he received an orientation package consisting of Union training materials and policies, including the CBA. Vista also establishes that Gonzalez on August 18, 2021, executed acknowledgment that the CBA covered his employment upon hire with Defendant Vista. (Dunn Decl. at ¶ 9 Exh. B.)

Furthermore, between September 29, 2024, and September 30, 2024, Plaintiff participated in training regarding changes to the CBA effective from April 11, 2024, through April 10, 2028. The training consisted of discussions and Microsoft PowerPoint slides detailing the provisions of the CBA, including the arbitration provisions found in Article V, Section 7. Plaintiff executed his signature on a training attendance roster confirming that he participated in the training. (Dunn Decl. at ¶ 10 Exh. C.) Plaintiff is covered by and subject to the CBA, including its arbitration provisions, by virtue of his employment with Defendant Vista.

## **The Delegation Clause**

An arbitration agreement must clearly and unmistakably delegate to the arbitrator the issues of arbitrability and enforceability. (*First Options, supra*, 514 U.S. at p. 944; *Gostev v. Skillz Platform, Inc.* (2023) 88 Cal.App.5th 1035, 1048.) In reviewing the delegation clause, California

contract principles govern. (*First Options, supra*, 514 U.S. at p. 944; *Sandquist, supra*, 1 Cal.5th at pp. 243-44.) Thus, one can challenge a delegation clause under general contract defenses, e.g., fraud, duress, and unconscionability. (*Rent-A-Center, W., Inc. v. Jackson* (2010) 561 U.S. 63, 68.) However, the defense must be specific to the delegation clause because, otherwise, a challenge to the arbitration agreement is for the arbitrator. (*Id.* at p. 72.) If the arbitration agreement contains a clear and unmistakable delegation and no defense is raised or established, then “a court may not override the contract. In those circumstances, a court possesses no power to decide the arbitrability issue.... [¶] [A] court may not decide an arbitrability question that the parties have delegated to an arbitrator.” (*Henry Schein, Inc. v. Archer & White Sales, Inc.* (2019) 139 S.Ct. 524, 529-30.) Plaintiff makes no claim that Article V’s delegation clause is revocable under any state contract defenses.

In the case at hand, the CBA contains a delegation clause that assigns threshold questions regarding the arbitration provision’s applicability, scope, and interpretation to the Arbitrator. Article V’s delegation of disputes over the “applicability, scope or interpretation of this Article” is clear and unmistakable in two respects. First, the delegation clause is clear and unmistakable on its face. (*Aanderud v. Superior Court* (2017) 13 Cal.App.5th 880, 892 (*Aanderud*) (holding materially similar language to be clear and unmistakable evidence of the parties’ delegation of gateway issues to the arbitrator).) Second, “[a]n arbitration provision’s reference to, or incorporation of, arbitration rules that give the arbitrator the power or responsibility to decide issues of arbitrability may constitute clear and unmistakable evidence the parties intended the arbitrator to decide those issues.” (*Aanderud, supra*, 13 Cal.App.5th at pp. 892-893.) As Article V expressly incorporates the JAMS Employment Arbitration Rules & Procedures for employment arbitrations, Rule 11(b) effectively grants the Arbitrator the authority to decide arbitrability disputes over the formation, existence, validity, interpretation, and scope of the CBA’s arbitration provision. (Dunn Decl. ¶ 3, Exh. A at pp. 6-7; JAMS Employment Arbitration Rule 11(b).)

### **RULING**

1. Defendant’s motion to compel arbitration subject to the arbitrator determining enforceability of arbitration agreement is GRANTED. This matter is stayed pending outcome of arbitration.
2. OSC re Status of Arbitration is set for September 28, 2027 at 9:00am.
3. Movant to give Notice.